IN THE SUPREME COURT OF INDIA

FREE SPEECH & CYBER JURISPRUDENCE JURISDICTION

(Division Bench (2 Judges))

CASE NUMBER: Writ Petition (Criminal) No. 167 of 2012 **CNR: SCIN010001672012**

REPORTABLE CITATION: (2015) 5 SCC 1 DATE: March 24, 2015

CORAM: Hon'ble J. Chelameswar & Rohinton Fali Nariman, JJ.

Shreya Singhal v. Union of India

Shreya Singhal ...PETITIONER(S)

VERSUS

Union of India ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Information Technology Act, 2000, Constitution of India | Sections: Section 66A IT Act, Section 79 IT

Struck down Section 66A of the Information Technology Act in its entirety as unconstitutional for violating the fundamental right to free speech under Article 19(1)(a). Struck down the law that allowed police to arrest citizens for writing offensive or annoying posts online, protecting democratic free speech on social media.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Section 66A of the Information Technology Act, 2000 is struck down in its entirety being violative of Article 19(1)(a) and not saved under Article 19(2). The section is cast so widely that virtually any opinion on any subject would be covered, creating an impermissible chilling effect on speech.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Section 66A Declared Unconstitutional (Outcome: Allowed)

Precedential Authority: Good Law (Landmark Free Speech Ruling)

LEXGUARD CRYPTOGRAPHIC REGISTERED SEAL • STATUTORY JUDICIAL ARCHIVE

`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`